

PR 7-11

PERMANENT RESOLUTION NO. 90-11

**CHICKASAW TRIBAL LEGISLATURE
Cooperative Effort With Non-tribal Entities**

WHEREAS, the Chickasaw Tribal Legislature is responsible for making decisions pertaining to the acquisition, leasing, disposition and management of tribal real property subject to federal law, and for enacting rules and regulations pertaining to the Chickasaw Nation, and

WHEREAS, Governor Bill Anoatubby, chief executive officer of the Chickasaw Nation, or his designee, is authorized to enter into, negotiate, amend and sign grants, contracts and other agreements on behalf of the Chickasaw Nation, and

WHEREAS, the Chickasaw Nation is a sovereign entity over which no jurisdiction or authority has been granted either by the tribal government or by the Congress of the United States to state or local courts or to state or local governmental entities, and

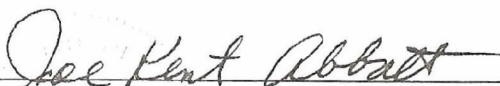
WHEREAS, from time to time the Chickasaw Nation receives garnishment notices and income assignments relating to some of its employees, and

WHEREAS, the Chickasaw Nation recognizes that it is not required to cooperate with such garnishment notices and income assignments but desires to continue to foster improved relations with other governmental agencies and entities through cooperation,

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby adopts a policy which authorizes all departments of the tribal government to cooperate with income assignments and garnishment notices, provided: 1) the agency, entity or firm making such garnishment notice or income assignment is notified, in writing, that the Chickasaw Nation *voluntarily* cooperates with such garnishment notice or income assignment; and 2) that a processing fee in an amount not to exceed \$50.00 is levied for each such garnishment notice or income assignment, with said amount being determined by the governor.

Executed in regular session of the Chickasaw Tribal Legislature meeting at Sulphur, Oklahoma on May 18, 1990, by a vote of 9 ayes, 1 nays and 3 abstentions.

PASSED


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 18 1990

PERMANENT RESOLUTION NO. 90-11

**CHICKASAW TRIBAL LEGISLATURE
Cooperative Effort With Non-tribal Entities**

Explanation: This resolution is identical to Permanent Resolution Number 90-07, which failed to receive sufficient votes to be adopted during the April session of the legislature. Because of its importance, it is being renumbered and reintroduced during the May session. This resolution establishes a policy which allows the tribal government to honor garnishment notices and income assignments which might be made, through the state courts or through agencies, departments or entities of the state or local governments, which affect the salaries of tribal employees. The policy also provides for the assessing of a processing fee in an amount *not to exceed* \$50 for each garnishment notice and income assignment, with the final amount to be determined by the governor. This provision is included only so that, should the need arise for the charging for processing of such garnishments or income assignments, the authority to do so will already exist in tribal law. The inclusion of the not to exceed amount in this resolution only means that the authority to charge for those services exists, if the need for assessing charges is ever found to exist.

Although the tribal government recognizes that it is not subject to the jurisdiction of state courts when such income assignment or garnishment notices are issued by those courts or agencies, it has been found to be desirable for the tribe to honor such requests in the improvement of its cooperation and overall reputation. The adoption of such a policy strengthens the tribe's sovereignty and notifies the public that it is eager to cooperate. Our tribal general counsel, Bob Rabon, has recommended that this action be taken.

We have, in past years, honored such garnishments and income assignments made against employees' salaries. We have in place a policy which addresses such attachments to salaries. That policy requires counseling upon each instance of a garnishment or income assignment and encourages employees to take care of their personal debts.

Requested by: Joe Kent Abbott.